

(48)

Tentative Ruling

Re: **Reyna v. Avila**
Superior Court Case No. 25CECG05416

Hearing Date: August 4, 2026 (Dept. 501)

Motion: By Plaintiff for Motion to Strike Answer

**If oral argument is timely requested, it will be entertained on
Tuesday, August 11, 2026, at 3:30 p.m. in Department 501.**

Tentative Ruling:

To grant. (Code Civ. Proc., § 436, subd. (b).)

Explanation:

The court has discretion under Code of Civil Procedure section 436, subdivision (a), to strike out any "irrelevant, false, or improper matter inserted in any pleading," or, under subdivision (b), the court may strike out any part, or all, of a pleading "not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436.) The grounds to strike pleadings under subdivision (b) is limited to improprieties in its form or in the procedures pursuant to which it was filed. (*Ferraro v. Camarlinghi* (2008) 161 Cal.App.4th 509, 528.)

Under Code of Civil Procedure section 446, subdivision (a), where a complaint is verified, the answer shall also be verified. A party's verification must state "that the same is true of his own knowledge, except as to the matters which are therein stated on his or her information or belief, and as to those matters that he or she believes it to be true."

In the case at bench, plaintiff Juan J. Reyna, Jr. ("Plaintiff") moves to strike the Answer filed by defendant Evelyn Avila ("Defendant") under Code of Civil Procedure section 436, subdivision (b).

Plaintiff's Complaint is sufficiently verified under Code of Civil Procedure, section 446. Thus, Defendant's answer was required to be verified. Defendant failed to verify her Answer, as the required statements and declarations in Code of Civil Procedure, section 446, subdivision (a) are absent from the pleading.

Defendant has not filed an opposition to Plaintiff's motion to strike Defendant's Answer in its entirety.

As such, the motion to strike Plaintiff's Answer is granted.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

